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Faxed to (801) 526-9244 Workforce Appeals Board
P.O. Box 45244
Salt Lake City, Utah 84145-0244

Re: Submission of Appeal and Supporting Documents
Appellant: Peter Golub
Case Nos.: 25-B-00327 / 25-A-05051

Cover Letter

Dear Members of the Workforce Appeals Board:

Enclosed please find Mr. Golub's written appeal and accompanying documentation in support of his request for reversal of the Administrative Law Judge's decision dated July 9, 2025, denying unemployment benefits.

Included in this submission are:

1. **Appellant's Formal Letter of Appeal**
   (Detailed arguments addressing factual and legal errors in the ALJ's decision.)
2. **Notice of Monetary Determination**
3. **ALJ Decision to Deny Benefits**
4. **Exhibits A & B**:
   - **Exhibit A:** Screenshot—Frontline Credentials Disabled (May 5, 2025)
   - **Exhibit B:** Email Confirmation—Granite School District Account Deactivation (May 10, 2025)
5. **Declaration of Peter Golub Describing Events of May 5**
   (Unsworn declaration pursuant to Utah Code § 78B-5-705, detailing the events of May 5, 2025, and subsequent account deactivation.)
6. **NB** Due to fax page limits, Hearing Transcript is not attached, but Letter of Appeal includes transcript quotes and citations.

Mr. Golub respectfully requests the Board's careful consideration of these materials and seeks reversal of the ALJ's decision or, alternatively, a de-novo remand for a fair rehearing with full discovery.

Please confirm receipt of these documents. I thank the Board in advance for its thorough review of my case.

Respectfully submitted,

Peter Golub

July 22, 2025
Workforce Appeals Board
P.O. Box 45244
Salt Lake City, Utah 84145-0244
Re: Appeal of ALJ Decision
Case Nos. 25-B-00327 / 25-A-05051

Mr. Golub's Letter of Appeal

I. Introduction

This appeal challenges the Administrative Law Judge's (ALJ) July 9, 2025 decision, which incorrectly found that Peter Golub voluntarily quit employment with Granite School District ("Granite"). The certified hearing transcript conclusively demonstrates that Granite initiated the separation by deactivating Mr. Golub's credentials on May 5, 2025, before any alleged resignation occurred. Granite failed to meet its burden of proving voluntary resignation, and the ALJ explicitly acknowledged uncertainty regarding critical employer testimony. Therefore, this Board should reverse the ALJ's decision or, at minimum, remand for a fair rehearing error of law.

II. Statement of Facts:

1. *Employer-Initiated Lockout (May 5, 2025)*: Granite unilaterally locked Mr. Golub out of his substitute-teacher employment portal ("Frontline"), thus barring him from employment (Exhibit A; Transcript (Tr.), p.16, ll.17–26).
2. *No Notice from Employer*: Granite failed to notify Mr. Golub of this action. When asked if a notification email was sent on May 5, Granite's witness, Mr. Wyatt Bentley, testified, "I don't have the date that it was sent out. I would have to go back and look…" (Tr. p. 17, ll. 4–6). The record shows the first contact from Granite was an email on May 13, 2025, eight days after the lockout. Mr. Bentley was unable to confirm whether Granite provided Mr. Golub with timely notification of the lockout (Tr. p.17, ll.2–6). No

notification was never sent or received, apart from a May 10 email informing Mr. Golub that all his Granite District accounts had been deactivated (Exhibit B).

3. *Employer's Ambiguity Regarding Employment Status*: When asked directly whether Mr. Golub was placed on probation or suspension, Mr. Bentley responded ambiguously:

   > "With our hourly employees or our substitutes, we don't necessarily consider probation… I guess it would be an informal probation, but not necessarily something that's formal, no." (Tr. p.16, ll.31–34)

   This equivocal testimony clearly indicates procedural confusion, supporting Mr. Golub's reasonable belief that his employment had ended involuntarily.

4. *Employer Unable to Verify Alleged Resignation*: During his testimony, Mr. Bentley admitted he could not recall Mr. Golub's exact words regarding the alleged resignation, testifying: "I don't remember the exact wording" (Tr. p.19, ll.4–10). The ALJ subsequently reinforced this critical uncertainty on the record: "He's [Mr. Bentley] already said he doesn't remember exactly what you [Mr. Golub] said." (Tr. p.20, ll.7–11). Granite thus provided no credible evidence that Mr. Golub voluntarily quit.

5. *Procedural Due Process Violation*: The ALJ excluded key evidence submitted by Mr. Golub, prejudicing his ability to present a complete argument (Tr. p.6, ll.3–8). Meanwhile, Granite selectively utilized documents Mr. Golub had no access to, causing substantial procedural unfairness.

6. *The Employer Failed to Meet Its Burden of Proof*: Utah Admin. Code R994-405-105 places the burden of proof squarely on the employer to show that a claimant's separation was a voluntary quit. An employer's claim based on testimony that "I don't remember the exact words" is not proof; it is conjecture. Granite offered no credible, competent

evidence to meet its burden. The ALJ erred in finding for the employer when the employer's own witness admitted his memory failed on the most critical point.

7. *Mr. Golub's Actions Were a Reasonable Response to a Constructive Discharge*: After being locked out of his job and his attempts at contact ignored for over a week, any reasonable person would conclude their employment had been terminated. Mr. Golub's email of May 13 was not an act of quitting; it was a confused response to what he reasonably believed was an already-completed termination.
8. *Continued Effort and Good-Faith Compliance*: Since May 18, 2025, Mr. Golub has maintained an active job search and submitted weekly claim filings, clearly satisfying the equity-and-good-conscience standard.

III. Legal Arguments

1. *Employer-Initiated Separation*: Under Utah Admin. Code R994-405-201, a separation is employer-initiated if the employer's actions determine the claimant's last working day. Granite's unilateral lockout constitutes precisely such an action, as established by *Clearfield City v. Dept. of Employment Security*, 663 P.2d 440 (Utah 1983).
2. *Employer Failed to Meet Burden of Proof*: Utah Admin. Code R994-405-105 mandates that Granite bear the burden of proving voluntary resignation. Testimony admitting uncertainty about Mr. Golub's words (Tr. p.19, ll.4–10; Tr. p.20, ll.7–11) does not satisfy this burden, rendering the ALJ's finding clearly erroneous.
3. *Lack of Just Cause*: Under *Kehl v. Board of Review*, 700 P.2d 1129 (Utah 1985), Granite was required to demonstrate culpability, knowledge, and control—none of which appear in the record.
4. *Procedural Due Process*: The exclusion of the complete email record, while allowing Granite's selective documentation, constitutes prejudicial error.

5. *Equity and Good-Conscience Compliance*: Mr. Golub meets equity standards under Utah Admin. Code R994-405-103 through continuous, active employment-seeking efforts.
6. *Hostile Work Environment Due to Illegal Drug-Test Demand*: The May 5 incident constitutes intolerable working conditions. If Mr. Golub had quit, he would have just cause. Granite's principal demanded Mr. Golub submit to an immediate blood test without legal basis, violating Utah Code §34-38-6 and Granite Policy IX.A.1.b, thereby creating intolerable working conditions.

IV. Relief Requested

Mr. Golub respectfully requests that this Board:

1. Reverse the ALJ's decision and award unemployment benefits retroactively from May 18, 2025; or
2. Remand for a new hearing with specific instructions compelling full disclosure of Granite's May 1–15, 2025 email records, and subpoena all relevant witnesses concerning the May 5, 2025 incident.

VII. Mr. Golub's personal statement: Granite initiated the separation by locking me out of my job and ignoring my attempts at communication. When Granite finally contacted me a week later, it continued to ignore the subject of my emails and the May 5 incident and lockout. I worked very hard for the district, spending more money than any teacher I came across on snacks and school supplies for low-income students. Despite Granite's termination of my employment, I continue to work on low-income education and am searching for jobs in the AI and education sectors. However, the job market is tight, and I genuinely need these payments to stay afloat while I continue to look for jobs where I can make a positive impact with my skills. I currently have less than $200 in the bank and am selling my books, clothes, and household goods to make payments. I tried to sell the wingtips I wore to class on May 5 for $300, eventually someone picked them up for $90. They were

practically new. I don't have a lot of shoes left. I'm down to hiking boots and old running sneakers. You can find my seller's profile on Etsy, KSL, Facebook Market Place, eBay, and Amazon.

Therefore, I once again beseech the Board, please reverse the ALJ's decision and find me eligible for unemployment benefits beginning May 18, 2025.

Respectfully,

Peter Golub, Appellant-Claimant

DECLARATION OF PETER GOLUB
Utah Code § 78B-5-705 – Unsworn Declaration
State of Utah, Salt Lake County

I, **Peter Golub**, declare under penalty of perjury that the following statements are true and based upon my personal experience:

1. **Identity.** I am the appellant in Workforce Appeals Board Case No. 25-B-00327. I reside at 3921 S 2000 E, Holladay, Utah 84124.
2. **May 5, 2025 Assignment to Teach at Taylorsville Elementary.** On the morning of May 5, 2025, I accepted a same-day substitute-teacher assignment through Granite School District's Frontline portal to teach at Taylorsville Elementary School. The job was posted as "teacher," but the assignment was for "dance teacher"—a specificity that should have been stated in the assignment. I put on the three-piece suit that is my typical attire for teaching, though I often leave the jacket in the car, so the day of the incident I was dressed in a pressed dress shirt, tie, waistcoat, pressed slacks, and classic black Florsheim wingtips.
3. **Lack of Class Materials.** Upon arrival the main office provided no room key, no roster and no schedule, so that I knew neither when classes began or ended nor who was supposed to be in my class. Most schools give their substitutes a computer and binder, which apart from the roster and schedule also includes lesson plans, handouts, and general class materials that can be shown in class using the computer. The only material I received was an old printout with some urls and vague warm-up exercises, like "stretching for 10 minutes." After I'd complained about this multiple times, a secretary handed me a sticky note that listed times for an unrelated class (and for the wrong year). I informed office staff that the absence of a roll and schedule made it impossible for me to plan classes and verify which students

belonged in the room. Also, how was I expected to enter the urls without a computer. Luckily, I'd brought my own.

4. **Unsanitary Classroom Conditions and Absence of Preparatory Materials.** When I entered the classroom, it smelled strongly of mildew. When I attempted to open the window, I discovered they were sealed shut. I did what I could with what I was given—no keys, no schedule, no roster, no computer, no lesson plan. It was a dance class, so dance! Which is what I proceeded to do, quickly buying a Netflix subscription and putting on a series I'd written subtitles for, *Dance Monsters*. Events progressed well enough, some kids danced to the music, while some watched and rated each performance which I recorded on the board. Whoever came closest to the judges final scores got a Hi-Chew—this was a difficult but not my first Granite-School-District rodeo. Toward the end of first period, a teacher came in and complained about the noise, which I found odd since dancing typically entails high decibels. Then, it became evident that one of the 1st-graders had danced a little too enthusiastically because soon the fungal aroma of the room was complimented by the pungent fragrance of what I hoped was the benign *Clostridioides difficile* and not *Salmonella* or *E. coli*. I reported this to another teacher and asked for something other than the jumbo-sized can of Lyson on top the rusty filing cabinet which, apart from the miniature desk, was the only piece of furniture in the room. Lysol is not supposed to be breathed, certainly not by children. It says so right on the bottle. After asking for an appropriate air-freshener, I told the class's home teacher that she should discreetly check which student required a change of clothes.

5. **Police and K-9 Intervention.** At the end of second period, the principal and vice-principal entered with a uniformed police officer. I noticed a K-9 unit outside my window. I asked if I need to take the kids outside for the drill, and instead I was escorted by the officer and

principal to her office where I was interrogated about smoking marijuana inside the class. As this was the strangest accusation I have ever heard levelled at me or anyone, I made a joke about Cheech and Chong. In my May 5 email to the Granite School District, I applauded them for this absurdity, because as a Soviet immigrant and someone who has travelled to some of the most corrupt governments on earth, I have never been shaken down for "smoking marijuana with 1st graders during a dance class inside an elementary school." This accusation took all the cake. If I were writing a Samuel Becket play or a Franz Kafka short story, I still would have never risen to the transcendental heights of Taylorsville's phantasmagoria. The officer left shortly after detecting no odor of marijuana. (NB I believe the principal insinuated she could smell "it" on me, but I'd used my girlfriend's conditioner which granted has herbal overtones.) I cooperated fully and answered all questions. The charge was that I had been smoking marijuana in a class of first-graders. Was the suggestion I'd smoked it with them? Or sneakily toked while they danced to Ariana Grande? I cannot stress this enough. The claim is that I, an old man wearing a tie, a waistcoat, and Florsheim wingtips, walked into an elementary-school dance class and smoked marijuana with a class of 1st-graders. I felt like I'd just won the Surrealist Lottery or the Glitch in the Matrix Prize, which you do apply for when substituting at the Granite School District. The word dumbstruck has never had a more literal connotation—What kind of a lunatic smokes Schedule-1 drugs inside an elementary school in Utah with 1st-graders while wearing a suit and tie and wingtips?! Willy Wonka? The Wizard of Oz? All I was trying to do was teach a dance class I didn't know I'd signed for. Had I known it was a dance class, I wouldn't have taken that assignment. I am not a good dancer, especially not in such slippery shoes. When I attempted to explain to the principal, vice-principal, and police that the class had already had a complex balm of bacteria and fungi, the vice-principal interrupted me saying that she knew

exactly what marijuana smelled like, because she had been inside a boy's bathroom… a junior-high boy's bathroom, only a few times… but she KNEW what it smelled like. I'd always thought the term "jaw-dropping" was a figure of speech, that no one literally "wrings their hands to heaven." But they do.

6. **Principal's Demand for a Blood Test.** Before students were to return from lunch, the principal returned to my class for a third time and demanded, verbatim, "You need to give me a blood test." My left eye twitched, and I noticed a strange angle to my neck. However, it's always the first exploding shell that causes the initial disorientation and ringing in the ear. By the time of the third shell, one is less shocked. So I very calmly gathered my things, held my head high, and ran out for fear of what I might say.
7. **Account Deactivation.** That evening, when I attempted to pick up another assignment, Frontline displayed an error message (Exhibit A), informing me that my account had been deactivated. I emailed Granite immediately describing the incident in great detail. I requested my account be reactivated. However, my attempts to contact Mr. Bentley and other Granite District staff were ignored. Five days later, on May 10, 2025, an email from the Granite School District arrived in my Gmail inbox, informing me that *all* district credentials had been deactivated (Exhibit B). Thus, by May 10, not only was I not an employee of the Granite School District, I was barred from applying to any jobs in the district. And yet, I still hadn't received any notice, correspondence, or message from my employer.
8. **Continued Desire to Work.** I never said I resigned, I quit, or made any such indication before (and indeed after) I had been terminated. On the contrary, I made it manifestly clear that I wanted to work for the district as I had spent considerable time researching, thinking, and writing about how the district could address its failure to meet its fiduciary responsibilities to its student body, especially its non-white and low-income students.

9. **Impact on Employment.** Because Frontline is the sole platform for accepting substitute work, deactivation rendered continued employment impossible. I remained willing and available to work but was blocked from doing so.

Executed on **18 July 2025**, at Holladay, Utah.

Peter Golub